

26STCP02018 26STCP02018

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-19

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Case Number: 26STCP02018 Hearing Date: August 19, 2026 Dept: 25

HEARING

DATE: Wed., August 19, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Wimberley v. Dry COMP. FILED: 06-01-26

CASE NUMBER: 26STCP02018

NOTICE: OK

PROCEEDINGS: DEMURRER TO COMPLAINT

MOVING PARTY:

Defendant Krystal Dry

RESP. PARTY: Fred

Martin Wimberley

DEMURRER TO COMPLAINT

(Code Civ. Proc., §§ 430.10, et seq.)

TENTATIVE RULING:

The Court SUSTAINS Krystal Dry's
demurrer WITH 20 DAYS' LEAVE TO AMEND.

Dry is to give notice.

SERVICE:

[X]

Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X]

Correct Address (CCP §§ 1013, 1013a) OK

[X]

16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of August 14, 2026 [] Late [X] None

REPLY: None

filed as of August 14, 2026 [] Late [X]

None

ANALYSIS:

Fred Martin Wimberley filed a document styled as a "Petition" in which he alleged that Krystal Dry is "guilty of a Building and Safety Code by not having the security gate . . . fixed properly," and "the black trash can . . . hasn't been emptied for several days." Wimberley requests a "court order . . . directing Dry" to fix both of those issues. To the extent Wimberley's filing is a complaint, Dry now demurs to the complaint pursuant to Code of Civil Procedure section 430.10, subdivision (a) for lack of subject matter jurisdiction, and subdivision (e) for failure to state sufficient facts to constitute a cause of action.

While Dry is correct that a court in a limited civil action cannot issue a permanent injunction unless permitted under Code of Civil Procedure section 85, 86, or 580, that does not deprive this Court of subject matter jurisdiction. Dry's argument pertains to whether this case is properly classified as a limited or unlimited action.

As for whether Wimberley's pleading states a cause of action: The complaint fails to comply with California Rules of Court, rules 2.100, 2.108, 2.111 and 2.112 to such a degree that the Court

is unable to determine what cause of action Wimberley is attempting to allege.

And as for any

new allegations in Wimberley's opposition, they do not appear in a pleading. The Court does not consider them in ruling on a demurrer. Wimberley may add allegations to an amended pleading.

The Court SUSTAINS Dry's demurrer.

Wimberley may file a first amended complaint that complies with the California Rules of Court within 20 days of notice of this ruling.

Dry is to give notice.